

RECEIVED

MAY 15 2026

KARA SANDS
CLERK OF THE COUNTY COURT
NUECES COUNTY TEXAS

THE STATE OF TEXAS *

COUNTY OF NUECES *

NOTICE OF FORECLOSURE SALE

Notice is hereby given of a public non-judicial foreclosure sale.

1. **Property to be Sold.** The property to be sold is described as follows:

Unit Three Hundred Five (305), Building A, SPINNAKER CONDOMINIUMS, City of Corpus Christi, A Condominium Project in Nueces County, Texas, together with the limited common elements and an undivided interest in and to the general common elements, as same are defined in the Condominium Declaration thereof, under County Clerk's File No. 414459, Volume 24, Page 614 and County Clerk's File No. 414460, Volume 24, Page 647, Condominium Records, Nueces County, Texas to which reference is here made for all pertinent purposes.

This conveyance will be made subject to 1) exceptions referenced in the Deed conveying title into Michael Scrutchin and Dorothy Scrutchin ("Obligor") to the extent the same are still in effect, said Deed appearing under Document No. 2020053579, Official Public Records of Nueces County, Texas; 2) any matters to which the Declaration subordinates its "Lien for Assessments"; and 3) the post-foreclosure notice and right of redemption requirements contained in the Texas Property Code.

2. **Date, Time and Place of Sale.** The sale is scheduled to be held at the following date, time and place:

Date: July 7, 2026

Time: Between the hours of 10:00 a.m. and 1:00 p.m. The sale shall commence at a time no earlier than 10:00 a.m. and shall conclude within three (3) hours thereafter.

Place: Nueces County Courthouse in Corpus Christi, Texas, at the following location: the covered area at the Lipan Street entrance to the courthouse.

The Spinnaker Condominiums Owners Association, Inc. (the "Association") reserves the right to postpone or withdraw, or reschedule the sale for another day. In such case the Association's representative need not appear at the date, time and place of a scheduled sale to announce the postponement, withdrawal or rescheduling. Notice of the date of any rescheduled foreclosure sale will be reposted and refiled in accordance with the posting and filing requirements of The Texas Property Code. Such reposting or refiling may be after the date originally scheduled for this sale.

3. Terms of Sale. The sale will be conducted as a public auction to the highest bidder for cash.

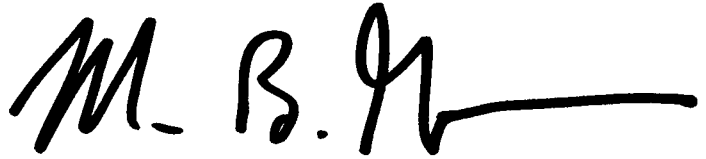
Those desiring to purchase the property will need to demonstrate their ability to pay cash on the day of sale for the property being sold.

4. Type of Sale. The sale is an assessment lien foreclosure sale being conducted pursuant to the provisions of the Declaration of Spinnaker Condominiums (the "Declaration") recorded under Clerk's File No. 414459, Volume 24, Page 6140 and Clerk's File No. 414460, Volume 24, Page 647, in the Property Records of Nueces County, Texas.

5. Obligations Secured. The Declaration establishes a lien to secure the payment of assessments and other sums levied or arising under said Declaration against the respective owner, together with interest thereon and attorney's fees incurred by the Association to enforce its rights (collectively the "Obligations").

6. **Default and Request to Act.** Default has occurred under the obligor's obligations secured by the aforesaid lien. The Association has requested the undersigned to conduct this sale. Notice is given that prior to the sale the Association may appoint another person as a Trustee to conduct the sale.

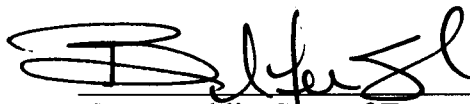
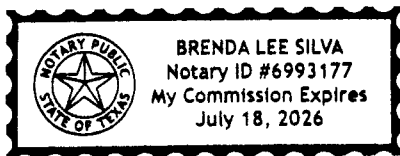
DATED: May 13, 2026.



MARK B. GILBREATH, Trustee
Law Office of Mark B. Gilbreath, PLLC
5306 Holly Road, Ste A
Corpus Christi, Texas 78411
Telephone: (361) 992-1754

THE STATE OF TEXAS *
COUNTY OF NUECES *

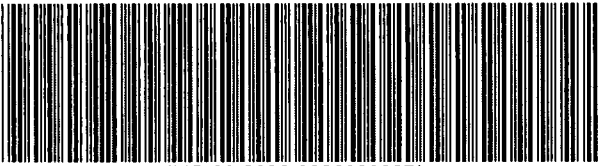
BEFORE ME, the undersigned authority, on this 13 day of May, 2026, personally appeared **MARK B. GILBREATH, Trustee**, known to me to be the person whose name is subscribed to the foregoing instrument, and acknowledged to me that he executed the same for the purposes and consideration therein expressed and in the capacity therein stated.



Notary Public, State of Texas

AFTER RECORDING RETURN TO:
Law Office of Mark B. Gilbreath, PLLC
5306 Holly Road, Ste A
Corpus Christi, Texas 78411

5/13/2026/ATTY/MBG PLLC/S/SPINNAKER CONDO OWNERS ASSOCIATION/SCRUTCHIN-MICHAEL/4 NOTICE_FORECLOSURE JULY 2026.DOCX/bis:



VG-38-2026-2026000297

**Nueces County
Kara Sands
Nueces County Clerk**

Instrument Number: 2026000297

Foreclosure Posting

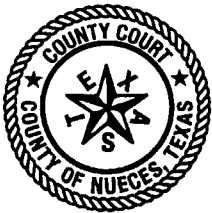
FORECLOSURE NOTICE

Recorded On: May 15, 2026 09:52 AM

Number of Pages: 4

" Examined and Charged as Follows: "

Total Recording: \$7.00



STATE OF TEXAS

Nueces County

I hereby certify that this Instrument was filed in the File Number sequence on the date/time printed hereon, and was duly recorded in the Official Records of Nueces County, Texas

Kara Sands
Nueces County Clerk
Nueces County, TX

***** **THIS PAGE IS PART OF THE INSTRUMENT** *****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY because of color or race is invalid and unenforceable under federal law.

File Information:

Document Number: 2026000297
Receipt Number: 20260515000046
Recorded Date/Time: May 15, 2026 09:52 AM
User: Regina C
Station: CLERK03

Record and Return To:

LAW OFFICE OF MARK B GILBREATH PLLC